Insiza Rural District Council (Community Halls, Stadia, Parks, Gardens, Arts and Cultural Facilities) By-laws, 2025

ARRANGEMENT OF SECTIONS

Section

1. Title.
2. Application.
3. Interpretation.
4. Rights and status of artists.
5. Co-operation between council departments.
6. Application for hiring of facilities.
7. Hire charges.
8. Payment of charges.
9. Period of hire.
10. Adjustment of reservation period.
11. Joint hire.
12. Sub-letting.
13. Condition of facility.
14. Duties of the hirer.
15. Security deposit.
16. Damage to property.
17. Advertisements and decorations.
18. Admissions and sale of tickets.
19. Overcrowding.
20. Sale of refreshments.
21. Services.
22. Exclusion of liability.
23. Destruction of facility.
24. Termination for non-compliance.
25. Termination of hire.
26. Fire hazards and insurance.

Section

27. Storage facilities.

28. Equipment.

29. Right of entry.

30. Inspection after hire.

31. Compliance with existing regulations.

32. Nuisance.

33. Offences and penalties.

FIRST SCHEDULE: Fees.

SECOND SCHEDULE: Penalties.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 90 of the Rural District Councils Act [*Chapter 29:13*], approved the following by-laws:—

Title

1. These by-laws may be cited as the Insiza Rural District Council (Community Halls, Stadia, Parks, Gardens, Arts and Cultural Facilities) By-laws, 2025.

Application

2. These by-laws shall apply to all areas under the jurisdiction of the Council.

Interpretation

3. In these by-laws—

"arts" means all forms and traditions of dance, drama, music, music theatre, visual arts, crafts, design, written and oral literature, film video, traditional and community art, all of which serve as means for individual and collective creativity and expression through performance, execution; presentation, exhibition, transmission and study;

"artist" means anyone who is involved in the creation, production, performance, execution, presentation,

exhibition, transmission or study of music, dance, theatre, crafts, films, video, traditional and community art, musical theatre and literature;

"appurtenance" means any installation or appliance in the premises and includes, without derogating from the generality of the afore-going, any keys, locks, windows, sewerage pans, basins, water taps and fittings;

"authorised official" means an official of the Council to whom powers and or functions have been delegated or assigned;

"centre" means a building owned or operated by the Council, whether incorporating a community hall or not, at which group activities of an indoor sporting, cultural or recreational nature can be pursued;

"Council" means Insiza Rural District Council;

"council departments" means division of Council dealing with a specific area of activity;

"culture" means the dynamic totality of distinctive, spiritual, material, intellectual and emotional features which characterise a society or a social group and includes language and heritage conversation (including museums, archives, libraries, historical sites and monuments);

"cultural activity" means sports or activities which contributes to or enhance the historical or social development, appreciation of members of the public;

"facilities" means any land, building or structure or any portion of land, building or structure on or in which the arts, sports and cultural activities regulated by these by-laws are carried out or on which a centre had been constructed;

"group activity" means an activity or function of an artistic, cultural or sporting nature in which several members of a group of persons having interest in the nature of the activity participate either together or in sub-groups, or serially, whether as individuals or in teams;

"hirer" means any person who applies, pays and obtains approval for the use of the facilities;

"person" means a natural or juristic person and vice versa and includes a voluntary association of natural and of juristic persons;

"prescribed fee" bears the same meaning as that set out in section 7 of these by-laws;

"property" means the property on which the facility or buildings of the Council are situated;

Rights and status of artists

4. The Council shall recognise the rights of all artists to practice their respective forms of art and enjoy their right to freedom of expression through such medium, consistently with the application of any other relevant law.

Co-operation between Council departments

5. Every department of the Council having jurisdiction over or responsibility for any multi-purpose community facility must cooperate with any other such department in ensuring that—

(a) such centre is properly maintained in a state fit for the purposes for which it was designed and is used; and

(b) no part of such centre is made available to or hired out to more than one person at the same time.

Application for hiring of facilities

6. (1) Any person wishing to apply for the hiring of facilities shall—

(a) submit an application together with an application fee, in the form prescribed by the Council for the purpose;

(b) submit an application to the Council and shall stipulate the facilities, seating, accommodation and equipment required and the period for which the premises and such other facilities as are referred to in this paragraph are required;

(c) ensure that such application form is received by the Council not less than 7 days prior to the date on which the facility is first required by the applicant.

(2) The Council may refuse to hire out any facility in terms of subsection (1), or to cancel any booking thereof if —

(a) the facility is to be used for any unlawful purposes; or

(b) the facility being applied for are required by the Council for its purposes at the same time; or

(c) Council has other valid reasons.

(3) No compensation is payable by the Council to the hirer for any loss which the hirer may suffer by reason of the Council having acted in terms of subsection (2).

(4) The hirer is limited to the use of the facility specified in the application form and shall not use any other facilities for which he or she had not applied.

(5) The facility hired shall not, except with the prior written approval of the Council, be used for any purpose other than the purposes indicated on the application form.

Hire charges

7. The tariff of fees for the services and facilities provided by Council are in the First Schedule.

Payment of charges

8. No person is permitted to use any facility unless the prescribed fee has been fully paid.

Period of hire

9. Notwithstanding any determination made by the Council regarding the dates and or period for which the facility shall be hired, the Council may allow the hirer reasonable access to the facilities before the commencement date of hire, so as to enable the hirer to make the necessary preparations and arrangements in the facility and after the period of hire to allow for the removal of the hirer's equipment.

Adjustment of reservation period

10. (1) Any person who has already made an application for reservation of facilities may cancel such reservation. However, if—

(a) a reservation is cancelled one month or longer prior to the commencement date of such reservation the hirer shall receive a refund of the prescribed fee already paid subject to deduction of administration fees;

(b) a reservation is cancelled more than 15 days but less than one month prior to the commencement date of such reservation, the hirer shall receive a 50% refund of the prescribed fee;

(c) a reservation is cancelled less than 14 days but more than 7 days prior to the commencement date of such reservation, the hirer shall receive a 30% refund of the prescribed fee;

(d) a reservation is cancelled 6 days or less prior to the commencement date of such reservation, the hirer is not entitled to receive any refund of the prescribed fee.

(2) No person shall extend the period of hire of facilities without written approval to the Council, provided that the facilities concerned have not been reserved for use by any other person or persons.

(3) The Council reserves the right to refuse a postponement if the facilities have in the meantime been reserved for use by another or others on the dates to which the postponement is sought.

Joint hire

11. (1) The Council may let any facility or parts thereof to different hirers for simultaneous use and in such a case, each hirer must use all the ancillary facility which serve the different parts of the facility in common jointly with the other users and in such manner that all the different hirers, their guests, consumers and patrons, are able to enjoy the use of the facility without infringing on the rights of use by others.

(2) The provisions of these by-laws, read with other Council by-laws shall apply to the joint users of the hired facility.

Sub-letting

12.The hirer shall not sub-let any of the hired facility to any person or organisation nor shall the hirer cede, pledge or renounce in

favour of another person any of his or her rights or obligations under these by-laws nor allow any other person to occupy the facility.

Condition of facility

13.(1) The hirer shall inspect the hired facility, including all installations, appliances, fittings, accessories and furniture before he or she commences to use the same and if the hirer finds that any of the installations, appliances, fittings, accessories and furniture on the facility are not in a proper state of repair, the hirer shall report this fact to the Council.

(2) If the hirer fails either to inspect the facility in terms of subsection (1), or to report any other defects found, it shall be deemed that upon commencement of occupation by the hirer, everything in the facility was in a proper state of repair.

Duties of hirer

14. Every person hiring a facility from the Council shall—

(a) take all reasonable steps to keep all sewerage pipes, water taps and drains within or serving the facility free from obstruction or blockage as a result of the hirer's activities;

(b) at all times keep the facility in a clean, tidy and sanitary condition;

(c) not affix or attach to the facility any notices or other matter without the prior consent of the Council, provided that upon the termination of the hire, the hirer must remove all such attachments;

(d) not obscure any plate glass windows by painting or otherwise;

(e) not drive into the walls or partitions or doors of the facility any screws or nails;

(f) not change or interfere with or overload any electrical installation in the facility;

(g) not remove or take out from the facility any furniture or other articles whatsoever belonging to Council;

(h) not obstruct or interfere or tamper with any thermostats or air conditioning appliances in the facility in which the facility are located.

(i) not introduce or install any unsafe or heavy article, furniture, fitting, appliance or equipment which in the opinion of an authorised official could damage the facility or any part thereof, provided further that an authorised official may impose on the introduction of such item, such conditions as are reasonable to ensure the safety of the facility and persons using them.

(j) not install in the facility any air conditioning or ventilating units or equipment without the Council's prior consent;

(k) not permit the storage of motor vehicles or other movable items of any description on the pavements outside or the entrance halls, staircases or passages of the facility;

(l) not park vehicles nor allow the parking of vehicles by the hirer's employees, invitees, agents, directors or other representatives anywhere on the facility except in the properly demarcated parking bays on the facility as pointed out by an authorised official.

Security deposit

15. (1) The hirer shall pay a refundable security fee as specified in the First Schedule.

(2) The security fee shall only be refunded upon inspection of the hired facility by Council.

Damage to property

16. A hirer who fails to keep and maintain the facilities hired out to him or her and to return them to the Council in the same order and condition as when they were hired out to him or her is, in addition to any remedies available to the Council at common law, liable to a fine specified in the Second Schedule.

Advertisements and decorations

17. (1) A person who has applied for the hire of a facility shall not publicly announce or advertise any function or event in respect of which an application for the hire of such facility in terms of these by-laws has been made before the Council has notified such person in writing that the application has been approved.

(2) Every hirer shall before vacating the hired facility on the termination of the period of hire for any reason whatsoever, remove all posters, notices, decorations, flags, emblems, signs and other forms of advertisement or direction erected or affixed by him or her, and make good any damage caused by such removal.

Admissions and sale of tickets

18. The hirer shall be responsible for all logistical and security arrangements in connection with the admission of the members of the public to any cultural or other activities on the facility; and the provision of ushers and other persons necessary to control the admission of persons to the facility and the sale of tickets.

Overcrowding

19. (1) Overcrowding of the facility shall not be allowed at any time during any of the hirer's activities and the hirer must comply with the Council's requirements prescribing the maximum number of persons allowed on the facility during activities.

(2) Notwithstanding the general requirements referred to in subsection (1), the hirer shall not allow more persons admission to the facility than the number of available seats or, where seating is not provided, the maximum number of persons prescribed by notice on the facility or as stipulated in the contract of hire.

Sale of refreshments

20. (1) No person shall sell food or beverages in any hired facility during any activities for which they have been hired, without the prior written consent of the Council.

(2) The provisions of subsections (1) and (2) do not apply where the supply and sale of food and beverages is an integral part of the activities of the hirer.

Services

21. (1) The nature of the services to be provided to the facility by the Council or a service provider shall meet the minimum acceptable standards conducive for the use of the facility.

(2) The Council shall take such steps as are necessary for the proper maintenance and operation of any common areas in the facility.

(3) Neither the Council nor service providers are liable for the non-receipt or non-delivery of goods, postal matter or correspondence belonging to the hirer, nor are they liable for anything which the hirer, his or her employees, invitees, agents, directors or representatives may have deposited or left in the facility or any part thereof.

(4) An authorised official of the Council shall attend the hirer's function to ensure compliance with any provision of these by-laws.

(5) The hirer is not entitled to the official services of any authorised official or other representative of the Council who attends the hirer's function in terms of subsection (4).

(6) The hirer is not entitled to receive gratuitous cleaning or other services from the Council in connection with the hirer's activities during the preparation of a function or during a function.

Exclusion of liability

22. (1) The Council and service providers are not liable for—

(a) any damage or loss sustained by any person as a result of an insufficient supply or interruption in the supply of services to the facility, or due to any act or omission on the part of the Council, its employees authorised officials or representatives or service providers if the Council considers the interruption necessary to enable it to exercise any of its rights or carry out its obligations under these by-laws or under any other law;

(b) any loss, theft or damage caused to the stock-in-trade, furniture, equipment, installations, books, papers, clothing or other articles of any stature whatsoever kept in the hired facility by the hirer or anyone else whether in regard to the hirer's business or not;

(c) any consequential loss suffered by the hirer or anyone by making use of the facility on the hired facility or as a result of rain, hail, lightning, wind, fire, storms, riot or civil commotion or for loss of life or injury to the hirer or anyone else on or in the facility;

(d) any loss suffered by the hirer or anyone else as a result of any failure or defect of any of the facility on the hired

facility, provided such failure or defect is not attributable to any wilful act or omission on the part of the Council,

(2) Every hirer must, at the time of concluding a contract of hire for the facility applied for, complete and sign an indemnity in a form required by the Council in favour of the Council and service providers.

Destruction of facility

23. (1)The Council may cancel the hire of facility if—

(a) the facility is destroyed or are damaged to such an extent as to be substantially unusable; or

(b) there is damage to the facility such that, although subsection (1)(a) does not apply, the facility have been rendered substantially unusable because of absence of access or supply of any necessary service or amenity: or

(c) there is destruction or damage to the premises or parts thereof to neighbouring buildings, whether or not the hired facility is affected and the Council decides not to proceed with the hire of the facility in order to engage in reconstruction, renovation or rebuilding for safety reasons.

(2) Any decision made in terms of subsection (1) must be communicated by written notice given by the Council to the hirer within a reasonable period of the taking place of the event referred to in subsection (1)(a) giving rise to the cancellation; provided that in the case of notice given in terms of subsection (1)(b) and (c), such notice shall be deemed to be effective as from the date on which the damage or destruction, as the case may be, took place.

(3) No hirer shall make any claim against the Council arising out of the damage to or destruction of the facility or any part thereof or for the resultant loss of beneficial use of the facility by such hirer.

Termination for non-compliance

24. The Council shall at any time cancel the hire of the facility if the hirer fails to comply with any of the provisions of these by-

laws and the Council is not liable for any damage or loss sustained by any person as a result of such cancellation. In the event of such a cancellation, the Council is not precluded from exercising any rights or claims which the Council may have against the hirer under any provision of these by-laws or at common law.

Termination of hire

25. (1) Upon the termination of the period of hire for any reason, the hirer shall return the facility to the Council in good order and condition and shall make good repair at his or her own cost on demand any damage or breakages or, in the alternative, reimburse the Council for the cost of replacing, repairing or making good any broken, damaged or missing articles.

(2) Every hirer shall vacate the hired facility within such period after expiry of the period of hire as is stated on the application form or contract of hire. If the hirer fails to comply with the provisions of this subsection, the Council shall be entitled to levy a fee prescribed in the First Schedule for such additional period during which the hirer remains in occupation of the facility after the expiry of the period of hire. The provisions of this subsection do not preclude the Council from taking lawful steps to procure the eviction of any such hirer from the facility.

(3) Every hirer shall comply with all lawful instructions of the Council in respect of the cleaning of the facility upon the hirer's vacation of the facility.

(4) Every hirer shall comply with all lawful instructions of the Council in respect of the vacation of the facility and the return of the facility.

Fire hazards and insurance

26. (1) A hirer shall not at any time bring or allow to be brought or kept on the facility, nor undertake nor permit to be done or undertaken in the facility, any matter, thing or activity whereby the fire or any other insurance policy of the building concerned may become or becomes void or voidable or whereby the premium for any such insurance may be or is increased.

(2) If the premiums for such insurance are increased as a result of any act or omission contemplated in subsection (1), the Council

may, in its discretion, allow such activity and recover from the hirer the amount due in respect of any additional insurance premiums and the hirer must pay such amount immediately on notification from the Council or the insurance company to the effect that such additional premiums have been charged.

(3) The Council may at any time at its discretion require the hirer to take up insurance of the facility hired with an insurance company approved by the Council, against loss or damage by fire or any other cause during or as a result of any function for which the facility is hired.

Storage facilities

27. The Council is not responsible for providing facility for the storage of the equipment of the hirer, or the hirer's employees, visitors, supporters or agents during any period prior to, during or after an activity at the facility.

Equipment

28. A hirer, who requires the Council to supply any equipment for use during a function, may use such equipment only with the permission of the Council and under the supervision of an authorised official. If the hirer causes damage to the equipment or removes or causes the equipment to be removed from the facility without permission or, having removed it with permission, fails to return it, the hirer is liable for the repair or replacement costs thereof.

Right of entry

29. (1) Subject to the provisions of these by-laws as read with national legislation, the Council or its service provider shall enter the premises at a reasonable time —

(a) to inspect the premises and carry out any repairs or alterations or additions of modifications or improvements on the facility.

(b) in order to ensure that the conditions of hire of the facility and the provisions of these by-laws are being complied with.

(2) A hirer shall not have any claim for remission of any charges payable for the hire of the facility, compensation, and damages or otherwise in connection with the exercise by the Council of the rights under subsection (1).

(3) The Council or a service provider is entitled to erect scaffolding, hoardings and building equipment in, at, near or in front of the facility as well as such other devices required by law or which the Council's architects may certify is necessary to carry out the repairs contemplated in subsection (1)(a).

Inspection after hire

30. Upon the conclusion of all the hirer's activities at the end of the period of hire or at the termination of the hire under any of the provisions of these by-laws, the Council and the hirer or his or her nominee shall inspect the facility hired, for the purpose of assessing any damage or loss before refunding a security fee as outlined in these by-laws.

Compliance with existing regulations

31. The hirer shall comply with the Council's security and fire protection regulations which may from time to time be in respect of the facility.

Nuisance

32. (1) No person attending any activity in hired facility shall conduct himself or herself in an unseemly or obnoxious manner or cause a nuisance or annoyance to other people in or users of the facility, or to occupiers of other parts of the building or neighbouring buildings.

(2) An authorised official of the Council shall, during any activity of the hirer, direct that the hirer removes from the facility any person who is in a state of intoxication or who is behaving in an unseemly or obnoxious manner or causing a nuisance or annoyance to other people in or users of the facility, or to occupiers of other parts of the building or neighbouring buildings.

(3) An authorised official of the Council shall, during any activity of the hirer, direct the hirer to prevent the entry on the hired facility by any person who is in a state of intoxication or who behaves in an unseemly or obnoxious manner or is causing a nuisance or annoyance to other people in or users of the facility, or to occupiers of other parts of the building or neighbouring buildings.

Offences and penalties

33. Any person who contravenes any provision of these by-laws shall be liable to a fine specified in the Second Schedule.

First Schedule:

FEES

Section	*Description*	*Fees* (US$)
6	Application fees	0,00
7	Hire charges	50,00
10	Reservation fees	0,00
15	Security deposit	0,00
28	Equipment hire charges	0,00

Second Schedule:

PENALTIES

Section	*Description*	*Fees* (US$)
16	Damage to property	0,00
17	Failure to remove advertisements and decorations	0,00
19	Overcrowding	0,00
20(1)	Sale of refreshments without Council's consent	0,00
31	Failure to comply with existing fire regulations	0,00

The fees and penalties are payable in local currency at the prevailing interbank rate.